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Case Number: 26PSCV01319 Hearing Date: July 30, 2026 Dept: G

Defendant Xiaohua Chen's Demurrer to

Plaintiff Yuzheng Chen's Complaint

Respondent:

Plaintiff Yuzhung Chen

TENTATIVE

RULING

Defendant

Xiaohua Chen's Demurrer to Plaintiff Yuzheng Chen's Complaint is SUSTAINED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND and OVERRULED IN PART.

BACKGROUND

This

is a contractual fraud action. In May

2025, the nonparty United States Department of State (the State Department),

allegedly denied the immigration petition filed by defendant Jixian Han on

behalf of defendant Xiaohua Chen based on insufficient financial sponsorship. Jixian Han and Xiaohua Chen (collectively,

Defendants) allegedly approached nonparty Xie Hong, the friend and agent of

plaintiff Yuzheng Chen, to request help with the immigration petition. In October 2025, Xie Hong allegedly

facilitated an oral agreement between Yuzheng Chen and Defendants whereby

Yuzheng Chen agreed to provide employment verification through a childcare

business in exchange for \$100,000.00 and real property in China. On October 8, 2025, Yuzheng Chen allegedly performed

under the oral agreement by providing an employment verification letter. In April 2026, the State Department allegedly

approved Xiaohua Chen's permanent resident card (green card). However, Defendants allegedly never performed

under the oral agreement by paying Yuzheng Chen or transferring the real

property.

On

April 10, 2026, Yuzheng Chen filed the Complaint, alleging causes of action for (1) breach of contract, (2) promissory fraud, and (3) unjust enrichment.

On

June 19, 2026, Defendants filed this demurrer.

On July 14, 2026, Yuzheng Chen filed the opposition, and on July 23, 2026, Defendants filed the reply.

The

demurrer is set for hearing on July 30, 2026.

ANALYSIS

Defendants

specifically demur to each cause of action based on the failure to state sufficient facts and uncertainty. For the following reasons, the demurrer is SUSTAINED IN PART WITH LEAVE TO AMEND and OVERRULED IN PART.

Legal

Standard

A

party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.”

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers,

courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068,

1078.) The court should also draw

reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th 699, 727.) The court should liberally

construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d 842, 845.) To sustain a demurrer,

defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian, supra,

116 Cal.App.4th at 994; SKF Farms v. Super. Ct. (1984) 153 Cal.App.3d 902, 905, stating, "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed."; Hahn, supra, at 747, stating, "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.")

A

complaint should be stated with "reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent" of the plaintiff's causes of action.

(Smith v. Kern County Land Co. (1959) 51 Cal.2d 205, 509.) The matter is one of fairness, namely, to give the defendant adequate notice of what he is alleged to have done to be able to prepare his defense. (Bauer v. County of Ventura (1955) 45 Cal.2d 276, 291.)

Discussion

First

Cause of Action: Breach of Contract

Defendants

argue that the first cause of action fails to state sufficient facts to support a cause of action for breach of contract, is uncertain, and is precluded by the statute of frauds. The court disagrees.

To

state a cause of action for breach of contract, the plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

For

the first element, the Complaint alleges that Yuzheng Chen and Defendants entered into an oral agreement for employment verification in support of an immigration application in exchange for \$100,000.00 and real property in China. (See Compl., ¶ 10.) The statute of frauds, codified in Civil Code section 1624, requires that a contract for an interest in real property be in

writing, otherwise it is invalid. (See Civ. Code, § 1624, subd. (a)(3).) However, even if part of the contract is invalidated by the statute of frauds, the court recognizes that the part of the contract requiring payment in exchange for a service is not invalid. For the second element, the Complaint alleges that Yuzheng Chen provided an employment verification letter. (See Compl., ¶ 11.) For the third element, Yuzheng Chen alleges that Defendants “failed and refused to perform their obligations, including payment and property return.” (Compl., ¶ 14.) For the fourth element, the Complaint alleges that Yuzheng Chen did not receive the benefit of the \$100,000.00 promised by the agreement. (See Compl., ¶ 19.)

Based on these pled facts, the court finds the Complaint states sufficient facts for each element of breach of contract against Defendants, and that at least part of the contract is not invalidated by the statute of frauds.

Therefore, the demurrer to the first cause of action is OVERRULED.

Second
Cause of Action: Promissory Fraud

Defendants argue that the second cause of action fails to state sufficient facts to support a cause of action for fraud and is uncertain. The court disagrees.

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Super. Ct. (1996) 12 Cal.4th 631, 645.)

For

the first element, the Complaint alleges that Defendants promised to pay

Yuzheng Chen \$100,000.00 and transfer real property in China. (See Compl., ¶ 10.) For the second element, Yuzheng Chen alleges

that “[a]t the time Defendants made the promises, . . . they had no intention of performing those promises.” (Compl.,

¶ 20.) For the third and fourth elements,

the Complaint alleges that Defendants made the promises to induce Yuzheng Chen

to provide employment verification and that Yuzheng Chen reasonably relied on

those promises. (See Compl., ¶¶ 21–22.) For the fifth element, Yuzhen Chen alleges

that they were damages by not receiving the \$100,000.00 promised to them. (See Compl., ¶ 19.)

Based

on these pled facts, the court finds the Complaint states sufficient facts for each element of a cause of action for fraud against Defendants.

Therefore,

the demurrer to the second cause of action is OVERRULED.

Third

Cause of Action: Unjust Enrichment

Defendants

argue that the third cause of action fails to state sufficient facts to support a cause of action for unjust enrichment.

The court disagrees but nevertheless sustains the demurrer, as explained below.

“The

elements for a claim of unjust enrichment are receipt of a benefit and unjust

retention of the benefit at the expense of another. The theory of unjust enrichment requires one

who acquires a benefit which may not justly be retained, to return either the

thing or its equivalent to the aggrieved party so as not to be unjustly

enriched.” (Lyles v. Sangadeo-Patel

(2014) 225 Cal.App.4th 759, 769, cleaned up.)

For

the both elements, the Complaint alleges that Defendants received a benefit

from Yuzheng Chen by using the employment verification to obtain a green card

without compensating Yuzheng Chen. (See Compl., ¶¶ 11–13, 23–24.) However,

as stated above, "[t]he theory of unjust enrichment requires one who acquires a benefit . . . to return either the thing or its equivalent to the aggrieved party. . . ." (Lyles, supra, 225 Cal.App.4th at 769.) But Yuzheng Chen is not requesting that Defendants return the employment verification or forfeit the green card; instead, Yuzheng Chen requests compensation in accordance with the alleged oral agreement. (See Compl., Prayer, ¶¶ 1–5, requesting damages, interest, and costs but not requesting the return of any benefit.) In other words, while the Complaint alleges sufficient facts for each element of unjust enrichment, the cause of action is inappropriate because Yuzheng Chen does not seek a proper remedy.

Therefore,
the demurrer to the third cause of action is SUSTAINED WITH LEAVE TO AMEND.

CONCLUSION

For
these reasons, the demurrer is SUSTAINED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND as to the third cause of action and OVERRULED IN PART as to the first and second causes of action.